

Urmila Devi v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 28 July 2021 · Writ-C No. 6615 of 2021 · **Writ disposed; petitioner directed to seek Clause 6.14 installments from the Executive Engineer.**

HEADNOTE

A consumer who seeks only to pay electricity arrears in easy installments must invoke Clause 6.14 of the Electricity Supply Code, 2005 before the Executive Engineer. The High Court disposed of the writ by directing that representation within three weeks and requiring the Executive Engineer to decide it expeditiously in accordance with law, preferably within four weeks.

FACTUAL SUMMARY

Urmila Devi filed a writ petition in the Allahabad High Court stating that she was ready to deposit her electricity dues in easy installments. Counsel for the distribution licensee (Nigam) submitted that Clause 6.14 of the Electricity Supply Code, 2005 already provided for such a facility and that the power to grant it vested in the concerned Executive Engineer. The Court did not examine the arrears or eligibility on merits.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment facility — Executive Engineer

HOLDING

Where a consumer seeks only an installment facility for electricity dues, and Clause 6.14 of the Electricity Supply Code, 2005 vests that power in the Executive Engineer, the writ petition is disposed of by directing the consumer to apply under Clause 6.14 within a stipulated time and requiring the Executive Engineer to decide the application expeditiously in accordance with law. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14

The petitioner, who sought easy installments of electricity dues, was directed to invoke Clause 6.14 before the Executive Engineer, who must decide the application in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO AN INSTALLMENT FACILITY UNDER CLAUSE 6.14, AND ON WHAT TERMS

Left to the Executive Engineer to decide in accordance with law. ¶ 1